

POLI 560: Comparative Constitutional Systems

Term: Fall 2026 | Instructor: Prof. Alexis de Tocqueville (atocqueville@polisci.univ.edu)

Course Description & Overview:

Comparative analysis of judicial review, federalism, emergency derogation regimes, and democratic governance structures.

COURSE ASSIGNMENTS & WEIGHT DISTRIBUTION

Assignment Description	Weight	Due Module	Deliverable Format
Comparative Judicial Review Legal Memo	25%	Week 04	Jurisprudential Analysis Memo
Electoral System Reform Policy Brief	30%	Week 08	Legislative Policy Dossier
Constitutional Drafting Capstone Project	35%	Week 12	Model National Constitution
Socratic Seminar Discussion Leadership	10%	Continuous	Seminar Discussion Notes

WEEKLY TERM SCHEDULE & READING REQUIREMENTS

Timeline	Technical Topic Focus	Assigned Readings & Docs
Week 01	Module 01: Separation of Powers Dynamics	Madison (Federalist No. 51)
Week 02	Module 02: Models of Judicial Review	Kelsen (1942); Bickel (1962)
Week 03	Module 03: German Basic Law & Militant Democracy	Kommers & Miller (Ch. 2 & 3)
Week 04	Module 04: South African Post-Apartheid Charters	Klug (2000); Constitutional Court Cases
Week 05	Module 05: Parliamentary vs Presidential Systems	Linz (1990); Lijphart (Ch. 1–4)
Week 06	Module 06: Federalism and Devolution Dynamics	Riker (1964); Watts (Ch. 2)
Week 07	Module 07: Proportional vs Majoritarian Systems	Duverger (1954); Norris (1997)
Week 08	Module 08: Emergency Powers and Rights Derogation	Schmitt (1922); Ferejohn (2004)
Week 09	Module 09: Amendment Rules & Eternity Clauses	Albert (Ch. 3–5)
Week 10	Module 10: Democratic Backsliding & Constitutionalism	Levitsky & Ziblatt (2018)
Week 11	Module 11: European Union Supranational Law	Weiler (1991); CJEU Standards
Week 12	Module 12: Final Constitutional Drafting Showcase	Comparative Law Retrospective